



## CHAPTER 43.

An Act to bring under planning control land in Scotland which is not subject to a scheme or resolution under the Town and Country Planning (Scotland) Act, 1932; to secure more effective control of development in Scotland pending the coming into operation of planning schemes; to provide for the transfer to the Secretary of State of certain statutory functions; and for purposes connected with the matters aforesaid.

[11th November 1943.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) After the expiration of the period of three months beginning with the date of the commencement of this Act, all land which is not already the subject of a scheme in force under the principal Act or any enactment thereby repealed, or of a resolution in force under that Act to prepare or adopt such a scheme, shall be subject to a resolution to prepare a scheme under that Act, which shall be deemed to have been duly passed by the local authority for the district in which the land is situated and to have been approved by the Secretary of State and to have taken effect accordingly at the expiration of that period :  
Application of planning resolutions to land not already subject to planning schemes or resolutions.

Provided that the Secretary of State may, by order made at any time before the expiration of the said period, direct that this section shall have effect in relation to any land specified in the order as if for the reference to the local authority for the district in which the land is situated there were substituted a reference to such other local authority or joint committee as may be so specified.

(2) It shall not be necessary to publish or serve upon any person notice of a resolution to prepare a scheme which takes effect by virtue of this section, or to compile a register for the purposes of the scheme to be made in pursuance thereof, and accordingly the provisions of section seven of the principal Act shall not apply in relation to any such resolution.

Refusal and  
postponement  
of interim  
development  
applications.

2.—(1) The proviso to subsection (3) of section ten of the principal Act (which requires that applications for permission to develop land made under an interim development order must in certain cases be granted or granted unconditionally) shall cease to have effect.

(2) An interim development authority may, by a notice of postponement served in the prescribed manner on the applicant, postpone the consideration of any interim development application either generally or during such period as may be specified in the notice, unless the applicant shows to their satisfaction that the proposed development would be carried out immediately if the application were granted :

Provided that—

(a) the applicant may appeal against any such notice to the Secretary of State by giving notice of appeal within twenty-eight days from the date of the service on the applicant of the notice of postponement, and the Secretary of State, if satisfied that the development would be carried out immediately if the application were granted, shall by order cancel the notice of postponement ;

(b) if with respect to any interim development application it appears to the Secretary of State that there are exceptional reasons requiring the immediate determination thereof, he may, without prejudice to his power to require the application to be referred to him for decision in accordance with the subsequent provisions of this Act, give directions requiring the interim development authority to determine the application, and, where a notice of postponement has been served with respect thereto, may by order cancel the notice.

(3) So much of subsection (3) of section ten of the principal Act as provides that any application for permission to develop land made under an interim development order shall be deemed to be granted unless it is refused within the period specified in that subsection shall cease to have effect, and any such application shall be deemed to be refused at the expiration of two months from the date of the receipt thereof unless within that period—

(a) notice has been given to the applicant that the application has been determined by that authority or has been

referred to the Secretary of State for decision in accordance with the subsequent provisions of this Act ; or

- (b) the consideration of the application has been postponed by a notice of postponement under the last foregoing subsection ;

and any such application of which the consideration has been so postponed for any period shall be deemed to be refused at the expiration of two months from the end of that period unless within those two months notice has been given to the applicant as aforesaid or its consideration has again been postponed by virtue of a further notice of postponement :

Provided that—

- (i) any such period of two months may, at any time before the expiration thereof, be extended by agreement in writing made between the interim development authority and the applicant ;
- (ii) where a notice of postponement served with respect to any application is cancelled by an order made by the Secretary of State under this section, this subsection shall have effect in relation to the application as if for the reference therein to the date of the receipt of the application there were substituted a reference to the date of the order.

(4) In relation to any application which, under the provisions of this section, is deemed to be refused at the expiration of any period, the provisions of subsection (5) of section ten of the principal Act (which relates to appeals to the Secretary of State) shall have effect as if for the reference therein to the date on which the applicant received notice of the decision of the authority there were substituted a reference to the expiration of that period.

(5) Nothing in this section shall be construed as affecting the duty of an interim development authority—

- (a) to take into consideration with reasonable dispatch all interim development applications made to them, other than applications the consideration of which is postponed under the provisions of this section or which are referred to the Secretary of State for decision in accordance with the subsequent provisions of this Act ; and
- (b) to give notice to the applicant of their decision upon the consideration of any such application, including, where the application is refused or granted subject to conditions, a statement of the reasons for their decision.

3.—(1) Where, on an interim development application, permission for the erection, construction or carrying out of any building or work, or for any use of any building or land, has been Temporary permissions for interim development.

granted, whether before or after the commencement of this Act, for a limited period only, then, subject to the provisions of this section, the building, work or use shall not be deemed for the purposes of a scheme under the principal Act to be an existing building, an existing work or an existing use, as the case may be, by reason only of that permission.

(2) Where the period for which any such permission was granted has not expired on the date on which the scheme comes into operation, then, during the remainder of that period—

(a) subsections (3) and (6) of section thirteen of the principal Act, and subsection (2) of section twenty of that Act (which make special provision, in the case of existing buildings, works and uses, with respect to the time for service of notice of action proposed to be taken under the said section thirteen, the recovery of expenses incurred in taking such action, and the payment of compensation in respect of any such action); and

(b) any provision included in the scheme in accordance with paragraph (ii) of subsection (2) of section nineteen of the principal Act (which relates to the maintenance, alteration and replacement of existing buildings and the continuation of the existing use of such buildings),

shall apply in relation to the building, work or use, as the case may be, as those provisions apply in relation to existing buildings, existing works, or existing uses respectively :

Provided that, in calculating any compensation payable under the principal Act in respect of any exercise of the powers of the responsible authority under the said section thirteen in relation to the building, work or use, regard shall be had to the power of the responsible authority to take the like action, without payment of compensation, after the expiration of the said period.

(3) Where, in the exercise of any right conferred by a scheme as amended by the last foregoing subsection, a building is substituted for a building to which subsection (1) of this section applies, the foregoing provisions of this section shall have effect in relation to the substituted building as if it were the building for which it was substituted.

(4) The period for which any such permission was granted as aforesaid may be extended by the interim development authority on application made at any time before the expiration thereof ; and the provisions of section six of this Act and of subsection (5) of section ten of the principal Act (which relates to appeals to the Secretary of State) shall apply to any such application as they apply to interim development applications.

(5) For the purposes of this Act, where permission for the erection, construction or carrying out of any building or work, or for any use of any building or land, has been granted subject to

any condition or agreement for securing the subsequent removal of the building or work, or the subsequent discontinuance of the use, the permission shall be deemed to have been granted for a limited period only ; but permission shall not be deemed to have been so granted by reason only of the imposition of conditions requiring any building or work to be begun or completed within a specified period.

4.—(1) If at any time before a scheme under the principal Act comes into operation it appears to an interim development authority that it is expedient, having regard to the provisions then proposed to be included in that scheme, that any development for which permission has been granted on an interim development application should not be carried out or completed, or should not be carried out or completed to the extent or in the manner allowed by the permission, they may, by order made with the consent of the Secretary of State, revoke or modify the permission to such extent as appears to them to be necessary in that behalf.

Revocation  
and modifi-  
cation of  
permissions  
for interim  
development.

(2) The Secretary of State may give directions to any interim development authority requiring them to submit to him for his consent under the foregoing subsection an order for the revocation of any permission specified in the directions, or for the modification thereof in such manner as may be so specified ; and if any such directions are not complied with within the time specified therein, the Secretary of State may himself make the order on behalf of the authority.

(3) Where an interim development authority propose or are directed to exercise their powers under this section, they shall serve notice in the prescribed manner on the owner and on the occupier of the building or land affected, and on any other person who in their opinion will be affected by the order ; and the Secretary of State, before consenting to or making the order, shall, if either the authority or any such person so desire, afford them an opportunity of appearing before and being heard by a person appointed by the Secretary of State for the purpose.

(4) Where any permission for the development of land is revoked or modified under this section, the interim development authority may pay to any person whose property is injuriously affected thereby any such contribution as might have been made by them under subsection (4) of section ten of the principal Act if a fresh application for such permission had been made by that person ; and the provisions of subsections (6) and (7) of that section (which respectively enable an applicant whose appeal to the Secretary of State is dismissed to require his land to be purchased by the interim development authority in certain cases, and provide for compensation for abortive expenditure incurred for the purpose of complying with conditions confirmed or imposed by the Secretary of State on appeal) and of subsection

(2) of section eighteen of that Act (which provides in certain cases for compensation under a scheme in respect of additional injurious affection caused by the refusal on appeal to the Secretary of State of an interim development application or the imposition of conditions by the Secretary of State on the grant thereof) shall apply as if the Secretary of State had refused on appeal to grant such an application, or had imposed conditions upon the grant thereof, as the case may be.

Power to  
enforce  
interim  
development  
control.

5.—(1) If while a resolution to prepare or adopt a scheme under the principal Act is in force with respect to any area, any development of land within that area is carried out after the commencement of this Act otherwise than in accordance with the terms of the interim development order or of permission granted under that order, then, subject to the provisions of this section, the interim development authority may, if they are satisfied that it is necessary or expedient so to do having regard to the provisions then proposed to be included in the scheme—

- (a) where the development consists of the erection, construction or carrying out of any building or work or any part of a building or work, remove or pull down the building, work or part ;
- (b) where the development consists of any use of the land or any building thereon, by order prohibit that use, and, where necessary, reinstate the land :

Provided that where it is reasonably practicable, by means of alterations or of the execution of any other works, to bring any such building or work into compliance with any permission granted as aforesaid, the interim development authority shall, instead of removing or pulling down the building or work, carry out those alterations or works so far as appears to them to be necessary or expedient as aforesaid.

(2) The provisions of subsections (2) to (5) of section thirteen of the principal Act (which provide for an appeal to the sheriff against action proposed to be taken under that section) shall apply as set out with modifications in the First Schedule to this Act in relation to any action proposed to be taken under this section.

(3) The Secretary of State may give general or special directions for controlling the exercise by interim development authorities of their powers under this section, and may give to any such authority directions requiring them to exercise the said powers as respects any development specified in the directions in such manner as may be so specified ; and any such directions requiring an interim development authority to exercise their powers shall be enforceable, on the application of the Secretary of State by proceedings under section ninety-one of the Court of Session Act, 1868.

(4) Any expenses reasonably incurred by an interim development authority in taking action under this section in respect of any development may be recovered as a civil debt from the person by whom the development was carried out, and if that person, having been entitled to appeal against that action under the provisions of the First Schedule to this Act, failed so to do, he shall not be entitled in the proceedings under this subsection to dispute the validity of that action.

(5) If any person uses any land or building in a manner prohibited by an order under this section, he shall be guilty of an offence and liable on summary conviction to a fine not exceeding fifty pounds, and if the use is continued after the conviction he shall be guilty of a further offence and liable on summary conviction to a fine not exceeding twenty pounds for every day on which the use is so continued.

(6) Where permission for any development of land has, whether before or after the commencement of this Act, been granted under an interim development order for a limited period only, and that period expires before the scheme comes into operation, the provisions of this section shall, after the expiration of that period, apply in relation to the development as if no such permission had been granted and as if the development had been carried out at the expiration of the said period by the person then entitled to possession of the land.

(7) For the purpose of this section and of section ten of the principal Act, the use of any land for the deposit of waste materials or refuse shall be deemed to constitute development of the land, notwithstanding that it is comprised in a site which is already being used for that purpose, if the effect of the further use is to extend the superficial area of the deposit.

6.—(1) If it appears to the Secretary of State that it is expedient, having regard to considerations affecting the public interest, whether generally or in the locality concerned, that any interim development application, or any class or description of such applications, should be referred to him for decision, he may give directions to the interim development authority requiring that application, or applications of that class or description, to be so referred, and any decision of the Secretary of State on an application so referred to him shall be deemed for the purposes of subsection (4) of section ten of the principal Act to be a decision given by the interim development authority, and for all other purposes of that Act to be a decision given by him on appeal from the decision of the interim development authority:

Powers of Secretary of State with respect to interim development applications.

Provided that, before dealing with any application so referred to him, the Secretary of State shall, if either the interim development authority or the applicant so desire, afford them an opportunity of appearing before and being heard by a person appointed by the Secretary of State for the purpose.

(2) The Secretary of State may give directions to any interim development authority requiring them to furnish him with such information with respect to interim development applications received by them as he considers necessary or expedient for the purpose of enabling him to exercise his functions under the last foregoing subsection.

(3) Provision may be made by an interim development order for requiring interim development authorities, before dealing with interim development applications or any class or description of such applications, to consult with such authorities or persons as may be determined by or under the order.

(4) Where an appeal is taken to the Secretary of State under subsection (5) of section ten of the principal Act against the decision of an interim development authority upon any interim development application, the Secretary of State may reverse or vary any part of the decision of the interim development authority, whether or not the appeal relates to that part, and may deal with the whole application in like manner as if it had been referred to him for decision under this section.

Compensation for abortive expenditure in certain cases.

7.—(1) Where any interim development application, being an application for permission to complete or carry out a building or work begun or contracted for before the date on which the resolution to prepare or adopt a scheme under the principal Act took effect, is refused or is granted subject to conditions, then, without prejudice to the provisions of subsection (4) of section ten of the principal Act, if any person has—

- (a) where the resolution was in force at the date of the commencement of this Act, before that date; or
- (b) where the resolution took effect after that date, before the resolution took effect,

incurred expenditure in carrying out any work which is rendered abortive by the refusal or conditions, or entered into a contract for the purpose of any work which is abandoned by reason of the refusal or conditions, he shall be entitled to recover from the interim development authority by way of compensation an amount equal to the expenditure so incurred or, as the case may be, to any sums reasonably paid by him in discharge of any liability arising under the contract in respect of the abandonment of that work.

(2) Where any permission for the development of land is revoked or modified by an order under this Act, then, without prejudice to the provisions of subsection (4) of section four of this Act, if any person has, before the date of the order, incurred expenditure in carrying out any work which is rendered abortive by the order, or entered into a contract for the purpose of any



work which is abandoned by reason of the order, he shall be entitled to recover from the interim development authority by way of compensation an amount equal to the expenditure so incurred or, as the case may be, to any sums reasonably paid by him in discharge of any liability arising under the contract in respect of the abandonment of that work.

(3) For the purposes of this section any expenditure incurred in the preparation of plans for the purpose of any work, or upon other similar matters preparatory thereto, shall be deemed to be included in the expenditure incurred in carrying out that work, but except as aforesaid no compensation shall be paid under subsection (2) of this section in respect of any work carried out before the date on which the permission was granted, or in respect of any liability arising under a contract made before that date.

(4) Any claim for compensation under this section shall be made within twelve months after the date of the final determination of the interim development application or, as the case may be, the date of the order revoking or modifying the permission.

8.—(1) If it appears to any interim development authority that it is expedient, having regard to any provision proposed to be inserted in the scheme in accordance with section forty-five of the principal Act, to make provision for the preservation of trees or woodlands during the period pending the coming into operation of that provision, they may for that purpose make an order (in this section referred to as an "interim preservation order") with respect to such trees, groups of trees or woodland areas as may be specified in the order or as may for the time being be designated by the interim development authority in accordance with the order; and, in particular, provision may be made by any such order—

Interim protection of trees and woodlands.

- (a) for prohibiting (subject to any exemptions for which provision may be made by the order) the cutting down, topping, lopping or wilful destruction of trees except with the consent of the interim development authority, and for enabling that authority to give their consent subject to conditions;
- (b) for securing the replanting of any part of a woodland area which is felled in the course of forestry operations permitted by or under the order; and
- (c) for the imposition in respect of contraventions of the order of pecuniary penalties not exceeding the sum of fifty pounds and, in the case of a continuing offence, forty shillings for each day during which the offence continues after conviction, and for the recovery thereof by summary proceedings before the sheriff.

(2) An interim preservation order shall not take effect unless it is approved by the Secretary of State, and the Secretary of State may approve any such order either without modification or subject to such modifications as he thinks fit, but shall not approve any such order unless it contains provisions satisfactory to him—

- (a) for securing that any person aggrieved by the refusal of any consent required under the order, or by any condition imposed upon the grant of any such consent, is entitled to appeal to the Secretary of State; and
- (b) for enabling the interim development authority, upon the refusal of any consent required under the order, or upon granting any such consent subject to conditions, to make a contribution towards any damage or expense likely to be suffered or incurred by reason of their decision.

(3) Regulations shall be made under section thirty-six of the principal Act with respect to the submission and approval of interim preservation orders and the publication of notices thereof, and the Secretary of State, before approving any such order, shall take into account any objections made in accordance with the regulations and not withdrawn :

Provided that where it appears to the Secretary of State that any such order should take effect immediately, he may approve the order provisionally without complying with the requirements of this subsection with respect to the consideration of objections, but any order so approved shall cease to have effect upon the expiration of the period of two months from the date of the approval unless within that period it has been confirmed, with or without modifications, after compliance with those requirements.

(4) The compensation payable under subsection (1) of section eighteen of the principal Act in respect of injurious affection of property by the coming into operation of any provision included in a scheme in accordance with the said section forty-five shall include compensation in respect of any additional injurious affection of the property by the coming into operation of an interim preservation order under this section :

Provided that subsection (2) of section twenty-three of the principal Act (which specifies matters to be taken into account in assessing compensation under that Act) shall have effect as if the reference in paragraph (iii) of that subsection to a contribution made under the provisions of that Act relating to interim development orders included a reference to any contribution paid in accordance with the interim preservation order.

(5) Without prejudice to any exemptions for which provision may be made by an interim preservation order, no such order shall, while the Emergency Powers (Defence) Acts, 1939 and 1940, remain in force, prohibit or restrict the carrying out of any

operations authorised by any government department in accordance with Regulations made under those Acts.

(6) The power to make interim preservation orders under this section shall include power to revoke or vary any such order by a subsequent order.

9.—(1) Provision may be made by an interim development order for empowering any joint committee specified therein to permit the development of land in accordance with the terms of the order, and where such provision is made the joint committee shall be deemed to have been appointed or constituted for that purpose as well as for the purposes for which it was originally appointed or constituted. Provisions as to joint committees.

(2) A joint committee may delegate to any sub-committee appointed by them under subsection (5) of section three of the principal Act, or under that subsection as applied with modifications by an order under section four of that Act, any of their functions, including any powers exercisable by them under or by virtue of an interim development order.

(3) An order under section four of the principal Act for the constitution of a joint committee may be made by the Secretary of State without the request of any of the constituent authorities ; and accordingly in subsection (1) of that section the words "at the request of any one or more of them" shall cease to have effect.

(4) A joint committee constituted by an order under the said section four or under any enactment repealed by the principal Act may be dissolved by a subsequent order whether or not that order provides for the constitution of any other joint committee.

(5) Any land acquired, in accordance with any provision of the principal Act, by a joint committee being an interim development authority shall be vested in the local authority for the district in which the land is situated, and shall—

(a) until the date on which the scheme comes into operation be held in trust for the joint committee ;

(b) after that date, be held, transferred or disposed of in such manner as may be provided by the scheme.

10. No agreement made after the commencement of this Act under section thirty-three of the principal Act for restricting the planning, development or use of any land shall have effect unless it has been approved by the Secretary of State. Provisions as to agreements.

11.—(1) Any power of the Secretary of State under the principal Act or this Act to make an order shall include, and in the case of an order under the principal Act shall be deemed always to have Provisions as to orders.

included, power to revoke or vary that order by a subsequent order.

(2) Any interim development order made after the commencement of this Act shall be laid before Parliament as soon as may be after it is made, and if either House, within the period of forty days beginning with the day on which the order is laid before it, resolves that the order be annulled, the order shall thenceforth become void but without prejudice to the validity of anything previously done thereunder or to the making of a new order.

In reckoning any such period of forty days, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

Construction  
and applica-  
tion of certain  
provisions of  
principal Act.

12.—(1) Any reference in the principal Act to an authority specified in an interim development order, or to an authority empowered by such an order to permit the development of land, shall be construed as including a reference to a joint committee being an interim development authority as defined by this Act.

(2) In the following provisions of the principal Act, references to that Act shall, unless the context otherwise requires, be construed as including references to this Act, that is to say—

- (a) subsection (2) of section two (which empowers the Secretary of State to transfer certain functions of county councils under that Act to the town councils of small burghs) ;
- (b) sections twenty-two and twenty-three (which relate to the making and determining of claims under that Act for compensation) ;
- (c) subsection (1) of section thirty-six (which enables the Secretary of State to make regulations for prescribing anything which is required or authorised by that Act to be prescribed) ;
- (d) subsection (1) of section thirty-seven (which relates to the holding of local inquiries for the purpose of that Act) ;
- (e) section thirty-nine (which relates to the determination by the Secretary of State or by arbitration of applications and appeals under that Act) ;
- (f) subsection (1) of section forty-seven (which relates to the appointment by local authorities of committees for the purposes of that Act) ; and
- (g) sections forty-eight and forty-nine (which relate to the manner of defraying the expenses under that Act of local authorities, county councils and town councils of small burghs and to their power to borrow for the purposes of that Act).

13.—(1) If it appears to His Majesty to be expedient that any functions relating to the use and development of land in Scotland exercisable by any Minister of the Crown under any enactment should be exercised by the Secretary of State, His Majesty may by Order in Council transfer those functions to the Secretary of State.

Provisions  
as to transfer  
of functions  
to the  
Secretary of  
State.

(2) His Majesty may by Order in Council make such incidental, consequential or supplemental provisions as appear to His Majesty to be necessary or expedient in consequence of any transfer effected by or under this Act, and in particular, but without prejudice to the generality of the foregoing provision, any such Order in Council may—

- (a) modify or adapt any enactment, order, regulation, scheme, deed, agreement or other instrument relating to the transferor or to his functions or property, to such extent as appears to be necessary and expedient as aforesaid ;
- (b) provide for the carrying on and completion by, before or under the authority of the Secretary of State or of any person appointed by him of anything begun by, before or under the authority of the transferor, or of any person appointed by him, before the date of transfer, and for the substitution of the Secretary of State for the transferor in any contract or legal proceeding made or begun before that date ;
- (c) provide for securing that any order, regulation, direction, approval, appointment, requirement or authorisation made or given by the transferor before the date of transfer shall continue in force to the like extent and subject to the like conditions as if it had been duly made or given by the Secretary of State.

(3) In this section the expression “ the transferor ”, in relation to any functions transferred by or under this Act, means any Minister of the Crown by whom those functions were exercisable at any time before the date of transfer, and the expression “ the date of transfer ” means the date on which the transfer of those functions takes effect.

(4) Any Order in Council under this section shall be laid before Parliament as soon as may be after it is made.

(5) Any power conferred by this section to make an Order in Council shall include power to vary or revoke the Order by a subsequent Order, in Council.

14.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say :—

Interpretation.

“ interim development application ” means an application made under an interim development order for permission to develop land ;

“interim development authority” means a local authority, or joint committee empowered by an interim development order to permit the development of land ;

22 & 23 Geo. 5.  
c. 49.

“the principal Act” means the Town and Country Planning (Scotland) Act, 1932 ;

and other expressions have the same meanings as in the principal Act.

(2) Any reference in this Act to a resolution to prepare or adopt a scheme in force under the principal Act shall be construed as including a reference to an application or resolution which, under section fifty-one of that Act, has effect as if it were such a resolution.

(3) Any reference in this Act to the principal Act or to any provision thereof shall, except where the context otherwise requires, be construed as a reference to that Act, or to that provision, as amended by or under any subsequent enactment, including this Act.

Short title,  
citation,  
extent and  
repeals.

15.—(1) This Act may be cited as the Town and Country Planning (Interim Development) (Scotland) Act, 1943, and this Act and the principal Act may be cited together as the Town and Country Planning (Scotland) Acts, 1932 and 1943.

(2) This Act shall extend to Scotland only.

(3) The provisions of the principal Act set out in the first column of the Second Schedule to this Act are hereby repealed to the extent specified in the second column of that Schedule.

## SCHEDULES.

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### FIRST SCHEDULE.

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Section 5.

#### APPEALS FROM DECISION TO EXERCISE POWER TO ENFORCE INTERIM DEVELOPMENT CONTROL.

1. Not less than twenty-eight days before taking any action under section five of this Act, the interim development authority shall serve a notice in the prescribed manner on the owner and on the occupier of the building or land in respect of which the action is proposed to be taken and on any other person who, in their opinion, may be affected thereby, specifying the nature of, and the grounds upon which they propose to take, that action.

2. If any person served with such a notice as aforesaid desires to dispute any allegation contained therein, he may, by giving notice of appeal within twenty-eight days from the date of the service of the original notice on him, appeal to the sheriff, and the interim development authority shall not take the proposed action pending the final determination or withdrawal of the appeal.

3. If on any such appeal the sheriff is satisfied that the interim development authority are entitled to take the proposed action on the grounds specified in the notice, he shall dismiss the appeal and shall by his order empower the authority, after the expiration of the said period of twenty-eight days, to remove or pull down the building or work, or to execute the required alterations or works or, as the case may be, shall by his order prohibit the building or land from being used after the period aforesaid without the permission of the authority or in contravention of any conditions subject to which that permission was granted, but if he is not so satisfied, he shall allow the appeal:

Provided that the sheriff may, if he thinks fit, direct that an order made by him under this paragraph shall, instead of taking effect after the expiration of the said period of twenty-eight days, take effect at such later date as he thinks fit, being a date not more than twenty-eight days from the date of the order.

The sheriff shall make such order in regard to the expenses of an appeal under paragraph 2 of this Schedule as he may think proper.

## Section 15.

## SECOND SCHEDULE.

## REPEALS OF 22 &amp; 23 GEO. 5. C. 49.

- Section 4 ... In subsection (1), the words "at the request of any one or more of them".
- Section 10 ... In subsection (3), the words from "and they shall be deemed to have granted the application" to the end of the subsection.

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